

Bhagwandas v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 May 2022 · Writ-C No. 6469 of 2022 · **Disposed with liberty to file a Para 6.5 objection; coercive action stayed.**

HEADNOTE

A writ challenging recovery on a citation dated 21.11.2020 was disposed of without any opinion on merits. The petitioner was given liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks. If filed, the objection is to be decided in accordance with law within four weeks after hearing. Coercive action on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Bhagwandas filed Writ-C No. 6469 of 2022 in the Allahabad High Court against the State of Uttar Pradesh and three others, respondent no. 3 being the power distribution corporation. He sought quashing of recovery proceedings on a citation dated 21 November 2020 and a restraint on further action under it. Counsel for the corporation stated on instructions that the petitioner could object to the impugned demand and that the objection would be decided in accordance with law within a fixed time.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

objection under clause 6.5 to a recovery demand

HOLDING

The writ seeking quashing of recovery proceedings on the citation dated 21.11.2020, and a restraint on action under it, was disposed of without any opinion on merits. The petitioner may submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 within four weeks, with a certified copy of the order. If submitted in time, respondent no. 3 shall decide it in accordance with law within the next four weeks after a reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the recovery citation was disposed of, without any opinion on merits, by giving liberty to file an objection under Para 6.5 before the licensee within four weeks, to be decided after hearing within the next four weeks, with coercive action stayed in the meantime. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The dispute over the impugned demand underlying the recovery citation dated 21.11.2020 was left to an objection under Para 6.5, to be decided by respondent no. 3 in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CITATION DATED 21.11.2020 AND THE UNDERLYING DEMAND

The Court expressly declined to express any opinion on the merits and left them to the Para 6.5 objection. ¶ 1